

MASTER SOFTWARE SERVICES AGREEMENT

(the “Agreement”)

This Master Software Services Agreement (“Agreement”) is entered into on this 1st day of September, 2026 (“Effective Date”), by and between:

APEX MANUFACTURING INDIA PVT. LTD.

a company incorporated under the Companies Act, 2013, with its registered office at Plot No. 42, MIDC Industrial Area, Chakan, Pune, Maharashtra – 410501, India (“Customer”);

AND

DATAFORGE SYSTEMS PVT. LTD.

a company incorporated under the Companies Act, 2013, with its registered office at 8th Floor, Prestige Tech Park, Bellandur, Bengaluru, Karnataka – 560103, India (“Vendor”).

Customer and Vendor are each referred to individually as a “Party” and collectively as the “Parties”.

Annual Fee: INR 16,00,000 | Payment Terms: Net 60 | SLA: 99.9% Uptime | Termination Notice: 45 Days

1. DEFINITIONS

- 1.1** “Services” means DataForge's cloud-based manufacturing intelligence and enterprise analytics platform, together with related support and maintenance, as described in Appendix A.
- 1.2** “Customer Data” means data submitted or generated by Customer through its use of the Services.
- 1.3** “Documentation” means Vendor's standard user guides and technical documentation for the Services, as updated by Vendor from time to time.
- 1.4** “Subscription Term” means the Initial Term and any Renewal Term during which Customer is entitled to access the Services.
- 1.5** “Affiliate” means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party.

2. SCOPE OF SERVICES

- 2.1** Vendor shall make the Services available to Customer for use by up to 200 named users across Customer's manufacturing facilities, as further described in Appendix A.
- 2.2** Vendor shall provide standard onboarding, configuration, and training assistance as part of the implementation package described in Appendix A, and ongoing support in accordance with Section 7.
- 2.3** The Services are provided on a subscription basis and do not include a transfer of ownership of any underlying software, source code, or platform technology.

3. TERM AND RENEWAL

3.1 This Agreement shall commence on the Effective Date and continue for an initial term of twenty-four (24) months (“Initial Term”).

3.2 This Agreement shall automatically renew for successive periods of twelve (12) months (each, a “Renewal Term”) unless either Party provides written notice of non-renewal at least thirty (30) days prior to the expiry of the then-current term.

3.3 Vendor may revise the fees applicable to a Renewal Term by providing Customer at least thirty (30) days' written notice prior to the commencement of such Renewal Term. Continued use of the Services by Customer following the commencement of a Renewal Term shall constitute acceptance of the revised fees for that Renewal Term.

4. FEES AND PAYMENT

4.1 Customer shall pay Vendor an annual fee of INR 16,00,000 (Rupees Sixteen Lakh only) for the Services during the Initial Term, invoiced annually in advance, as set out in Appendix B.

4.2 Customer shall pay each undisputed invoice within sixty (60) days of the invoice date (“Net 60”). Amounts not paid when due shall accrue interest at 1.5% per month.

4.3 Commencing from the second year of the Subscription Term, the annual fee shall increase by 4% over the immediately preceding year's fee, compounding annually, as set out in Appendix B.

4.4 If any undisputed amount invoiced to Customer remains unpaid for more than fifteen (15) days past its due date, Vendor may, upon written notice to Customer, suspend Customer's access to the Services until such amount is paid in full, without prejudice to any other rights or remedies available to Vendor, and without liability to Vendor for any resulting loss or disruption to Customer's business.

4.5 All fees are exclusive of applicable taxes, which shall be borne by Customer.

5. CUSTOMER OBLIGATIONS

- 5.1** Customer shall provide accurate account and configuration information and shall be responsible for maintaining the confidentiality of user credentials.
- 5.2** Customer shall use the Services in accordance with the Documentation and applicable law.
- 5.3** Customer shall be responsible for the accuracy and legality of Customer Data submitted to the Services.

6. VENDOR OBLIGATIONS AND SUBCONTRACTING

- 6.1** Vendor shall perform the Services in a professional manner consistent with prevailing industry standards for cloud-based enterprise software providers.
- 6.2** Vendor may engage its Affiliates and third-party subcontractors to perform any part of the Services, including hosting, infrastructure, and support functions, and shall remain responsible for the performance of such subcontractors under this Agreement. Vendor shall use reasonable efforts to keep Customer informed, through its standard release notes or account management communications, of any subcontractor engagement that materially changes how the Services are delivered.
- 6.3** Vendor shall maintain applicable licenses, registrations, and certifications required to provide the Services.

7. SERVICE LEVELS AND SUPPORT

7.1 Vendor shall use commercially reasonable efforts to make the Services available with an uptime of 99.9%, measured monthly and calculated in accordance with Appendix A, excluding Scheduled Maintenance and events beyond Vendor's reasonable control.

7.2 If Vendor fails to meet the uptime commitment in Section 7.1 for a given month, Customer's sole and exclusive remedy shall be the service credits set out in Appendix A, issued as a credit against future invoices.

7.3 Vendor shall provide support in accordance with the severity levels and response times described in Appendix A.

7.4 Vendor shall provide Customer reasonable advance notice of Scheduled Maintenance likely to affect availability of the Services.

8. MODIFICATIONS TO THE SERVICES

8.1 Vendor may, from time to time and as part of its ongoing product development, modify, update, enhance, or discontinue individual features or functions of the Services, provided that such changes do not materially reduce the core functionality of the Services taken as a whole during the then-current Subscription Term.

8.2 Vendor shall provide notice of material changes to the Services through its standard communication channels, including release notes, in-product notifications, or account management updates, as Vendor deems appropriate.

8.3 Customer's continued use of the Services following any modification shall constitute acceptance of such modification.

9. DATA, INTELLECTUAL PROPERTY, AND ANALYTICS

9.1 As between the Parties, Customer retains ownership of Customer Data. Vendor is granted a license to process Customer Data solely to provide, support, and improve the Services.

9.2 Vendor and its licensors retain all right, title, and interest in the Services, the underlying platform, and all improvements, enhancements, and derivative works thereof.

9.3 Vendor may collect, aggregate, and analyze Customer Data together with data from Vendor's other customers to create aggregated and derived data sets for the purposes of improving the Services, developing new features, benchmarking, and generating industry insights, and may use, publish, license, or otherwise commercially exploit such aggregated data sets, including sharing them with Vendor's partners and third parties, provided that such aggregated data sets do not display Customer's name in a manner that directly identifies Customer as the source.

9.4 Nothing in this Section 9 shall be construed to transfer ownership of Customer Data to Vendor, and Vendor's rights under Section 9.3 shall continue notwithstanding termination or expiry of this Agreement.

10. TERM AND TERMINATION

10.1 Either Party may terminate this Agreement for material breach if the breaching Party fails to cure such breach within thirty (30) days of written notice.

10.2 Either Party may terminate this Agreement for convenience by providing the other Party with 45 days' written notice.

10.3 Upon termination or expiry, Customer's right to access the Services shall immediately cease. Upon Customer's written request made within thirty (30) days of termination, Vendor shall provide reasonable assistance to export Customer Data in a standard format, such assistance to be provided at Vendor's then-current professional services rates.

10.4 Sections 4 (Fees, to the extent accrued), 9 (Data, Intellectual Property, and Analytics), 11 (Confidentiality), 13 (Limitation of Liability), and 15 (Governing Law and Dispute Resolution) shall survive termination or expiry of this Agreement.

11. CONFIDENTIALITY

11.1 Each Party shall protect the other Party's Confidential Information using the same degree of care it uses for its own confidential information of similar nature, but not less than reasonable care, and shall not disclose such information to third parties except as permitted under this Agreement or required by law.

11.2 The obligations under this Section 11 shall survive for three (3) years following termination or expiry of this Agreement.

12. BUSINESS CONTINUITY AND DATA SECURITY

12.1 Vendor maintains a business continuity and disaster recovery program designed to restore the Services following a significant disruption within a commercially reasonable period, taking into account the nature and scope of the disruption.

12.2 Vendor shall perform periodic backups of Customer Data in accordance with its internal data management practices, as may be updated from time to time.

12.3 Vendor shall implement reasonable administrative, technical, and physical safeguards designed to protect Customer Data against unauthorized access, consistent with industry practice for similarly situated software providers.

12.4 Vendor shall notify Customer of a confirmed security incident affecting Customer Data without undue delay.

13. WARRANTIES AND LIMITATION OF LIABILITY

13.1 Vendor warrants that the Services will materially conform to the Documentation when used as intended. EXCEPT AS EXPRESSLY STATED HEREIN, THE SERVICES ARE PROVIDED “AS IS” AND VENDOR DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

13.2 IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING WITHOUT LIMITATION LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF BUSINESS OPPORTUNITY, LOSS OR CORRUPTION OF DATA, OR BUSINESS INTERRUPTION, ARISING OUT OF OR RELATED TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT, OR OTHERWISE, AND WHETHER OR NOT SUCH PARTY WAS ADVISED OF THE POSSIBILITY OF SUCH DAMAGES OR OF ANY LIMITED REMEDY FAILING OF ITS ESSENTIAL PURPOSE.

13.3 Subject to Section 13.2, each Party's aggregate liability arising out of or related to this Agreement shall not exceed the total fees paid by Customer in the twelve (12) months preceding the event giving rise to the claim.

13.4 Nothing in this Section 13 shall limit either Party's liability for death or personal injury caused by negligence, fraud, or any liability that cannot be limited or excluded under applicable law.

14. INDEMNIFICATION

14.1 Vendor shall defend and indemnify Customer against third-party claims alleging that the Services infringe such third party's intellectual property rights, and shall pay damages finally awarded against Customer as a result, subject to Section 13.

14.2 Customer shall defend and indemnify Vendor against third-party claims arising from Customer's misuse of the Services or breach of Section 5.

15. GOVERNING LAW AND DISPUTE RESOLUTION

15.1 This Agreement shall be governed by the laws of India. Subject to Section 15.2, the courts at Bengaluru, Karnataka shall have exclusive jurisdiction over any matter arising out of or in connection with this Agreement.

15.2 Any dispute arising out of or in connection with this Agreement that is not resolved by good-faith discussion within thirty (30) days shall be referred to and finally resolved by arbitration administered under the Arbitration and Conciliation Act, 1996, by a sole arbitrator. The seat and venue of arbitration shall be Bengaluru, Karnataka, and the language of arbitration shall be English. Each Party shall bear its own costs of arbitration, irrespective of outcome.

15.3 Any claim or cause of action arising out of or related to this Agreement must be brought within one (1) year after the cause of action accrues, after which such claim shall be permanently barred, notwithstanding any longer statutory limitation period that might otherwise apply.

16. GENERAL PROVISIONS

16.1 Neither Party may assign this Agreement without the other Party's prior written consent, except to an Affiliate or successor in connection with a merger or sale of substantially all assets.

16.2 This Agreement, together with its Appendices, constitutes the entire agreement between the Parties and supersedes all prior discussions and agreements on its subject matter.

16.3 This Agreement may be amended only by a written instrument signed by both Parties, except as expressly permitted under Sections 3.3 and 8.

16.4 If any provision of this Agreement is held unenforceable, the remaining provisions shall remain in full force and effect.

16.5 Notices shall be delivered in writing by email with confirmation of receipt or by registered post to the addresses set out in the signature block below.

IN WITNESS WHEREOF

The Parties have executed this Agreement as of the Effective Date first written above.

For and on behalf of	APEX MANUFACTURING INDIA PVT. LTD.
Name:	_____
Designation:	_____
Signature:	_____
Date:	_____

For and on behalf of	DATAFORGE SYSTEMS PVT. LTD.
Name:	_____
Designation:	_____
Signature:	_____
Date:	_____

APPENDIX A – SERVICES AND SERVICE LEVELS

A.1 Description of Services

Vendor shall provide Customer with access to the DataForge Manufacturing Intelligence Platform, comprising Production Analytics, Predictive Maintenance, Inventory Optimization, and Executive Dashboard modules, hosted on Vendor's cloud infrastructure, for use by up to 200 named users across Customer's facilities.

A.2 Implementation

- Kick-off and requirements workshop: within 2 weeks of Effective Date
- System configuration and data integration: within 8 weeks of Effective Date
- User training and pilot rollout: within 12 weeks of Effective Date
- Full go-live: within 14 weeks of Effective Date

A.3 Uptime and Service Credits

Monthly uptime is calculated as: $(\text{Total Minutes in Month} - \text{Downtime Minutes}) / \text{Total Minutes in Month} \times 100$, excluding Scheduled Maintenance windows notified at least 3 business days in advance.

Monthly Uptime	Service Credit
99.0% – 99.89%	5% of monthly fee
95.0% – 98.99%	10% of monthly fee
Below 95.0%	20% of monthly fee

A.4 Support Severity Levels

Severity	Description	Response Time
S1	Production system unavailable	1 hour, 24x7
S2	Major function impaired	4 business hours
S3	Minor function impaired	1 business day
S4	General query	2 business days

APPENDIX B – COMMERCIAL SCHEDULE

B.1 Annual Fee

The annual fee for Year 1 of the Subscription Term is INR 16,00,000 (Rupees Sixteen Lakh only), invoiced annually in advance and payable Net 60.

B.2 Fee Escalation

The annual fee shall increase by 4% at the start of each subsequent year of the Subscription Term, compounding annually, in accordance with Section 4.3 of the Agreement.

Year	Annual Fee (INR)
Year 1	16,00,000
Year 2	16,64,000
Year 3	17,30,560
Year 4	17,99,782

B.3 Additional Users

Additional named user licenses beyond the 200 included in the annual fee shall be charged at INR 750 per user per month, invoiced quarterly in arrears.

B.4 Professional Services

Implementation services beyond the standard onboarding package described in Appendix A, and any post-termination data export assistance under Section 10.3, shall be billed at Vendor's then-current professional services rates, as published in Vendor's standard rate card and updated from time to time.